

Artificial Intelligence (AI) Action Plan

RESPONSE TO REQUEST FOR INFORMATION

In Response to Request for Information

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National Science Foundation Office of Science and Technology Policy (NSF OSTP): Suggestions for Policy Priorities in the Development of an Artificial Intelligence (AI) Action Plan

Our team of experts—data scientists, researchers, and technical assistance consultants—at the American Institutes for Research® (AIR®) are pleased to have the opportunity to provide input to the National Science Foundation Office of Science and Technology Policy (NSF OSTP) on policies that will enhance America's AI dominance on the world stage. The suggestions in this response center on several key ideas: (1) AI policy frameworks should encourage innovation and competition; (2) America should be a leader in AI for education; and (3) Small businesses need support to thrive in the age of AI.

1. AI policy frameworks should encourage innovation and competition.

AI policy frameworks play a crucial role in shaping the development and deployment of general-purpose AI systems across diverse sectors. These frameworks should be designed to foster innovation and competition, enabling the development of AI systems that can perform a wide range of tasks and adapt to various applications in fields such as health care, finance, transportation, and manufacturing. By promoting a dynamic and competitive AI landscape, these policies can drive economic growth and position the United States as a leader in the global AI market.

Regulations that are not aligned with the pace of technological development, or impose excessive compliance burdens, can create barriers to entry and discourage investment (European Commission, 2021). At the same time, ethical considerations are necessary in the development and deployment of responsible AI. AI systems can influence decision making across various domains and pose a risk to personal data.

1.1. Regulations are necessary, but overly broad regulations can stifle innovation.

- I. **The velocity of innovation can be stifled.** Overly broad AI regulations can create a "chilling effect" that discourages businesses from exploring novel applications due to fear of noncompliance and penalties (Aghion et al., 2023). This can also lead to a "regulatory lag" where rules become obsolete or ill-suited to the rapidly evolving technology (Mittelstadt, 2019). In addition, regulatory costs disproportionately

burden smaller firms, hindering their ability to compete with larger corporations and potentially stifling innovation and competition (Kaya, 2021). Finally, the decentralized nature of open-source development presents challenges in ensuring adherence to regulatory standards (Franke et al., 2024).

II. Variations in regulatory frameworks can impede algorithmic fairness. AI models require large datasets to achieve optimal performance. Restrictions on data collection and usage can hinder model development (Wachter et al., 2017). Where restrictions limit data diversity, this exacerbates bias and impedes algorithmic fairness in AI models and may produce biased or discriminatory outcomes (Bartlett et al., 2022). Variations in data privacy laws and other regulations create challenges for businesses operating across borders, hindering the development of AI solutions that rely on data from multiple sources (Bakare et al., 2024).

III. The Impact of Regulatory Uncertainty on Investment and Long-Term Planning: Ambiguity in regulatory frameworks deters venture capital and private equity investment in AI startups. Investors may hesitate to commit funds to projects with uncertain regulatory outcomes (Challoumis, 2023). Unpredictable regulations also interfere with the development of long-term AI strategies. Businesses require a stable regulatory environment to plan investments and research initiatives (Rakha, 2023) and may relocate to jurisdictions with less stringent regulations. Skilled AI professionals and investment funds may seek out locations with less restrictive regulations (Zwetsloot et al., 2021).

1.2 We believe that balanced and evolving AI policy frameworks can encourage innovation.

We believe that balanced and evolving AI policy frameworks are essential for encouraging innovation and competition within the AI landscape. Such frameworks should provide a clear and predictable regulatory environment while allowing for flexibility and adaptation to the rapid pace of technological change. By striking this balance, AI policy frameworks can foster a thriving AI ecosystem that encourages the development of groundbreaking technologies while ensuring responsible and ethical AI development.

- I. **Dynamic, Risk-Based Approach:** A dynamic, risk-based approach to AI regulation is necessary (National Institute of Standards and Technology [NIST], 2023). Regulations should adapt to the rapid pace of technological development and focus on mitigating genuine risks, rather than imposing unnecessary burdens.

- II. **International Cooperation:** International cooperation is crucial to harmonizing regulatory standards. Consistent regulations across jurisdictions can reduce barriers to cross-border collaboration and market expansion.
- III. **Sandboxes and Controlled Environments:** Regulatory sandboxes and controlled environments can foster innovation while maintaining data security. These spaces allow businesses to test and develop AI applications in a controlled setting, promoting experimentation and learning.
- IV. **Balance Between Innovation and Ethical Responsibility:** Regulations should strike a balance between promoting responsible AI development and avoiding stifling innovation (European Commission, 2021). This requires careful consideration of the potential benefits and risks of AI applications.

1.3 Flexibility, responsiveness and communication will be key.

To ensure that AI policies are not too burdensome, the government can establish feedback channels across government offices that allow stakeholder groups to weigh in on how policy is playing out in different sectors. Channels that connect with businesses, academia, and state education departments are a few examples of potential communication pathways. These platforms can also serve as clearinghouses for AI-related discussions, updates, and knowledge sharing, ensuring that AI policies are effectively communicated and widely adopted. Allowing for user feedback and providing regular updates will keep AI stakeholders informed and engaged, ensuring that AI policies and programs are responsive to the needs of the American AI community.

2. America should be a leader in AI for education.

2.1 AI can support improvements in teaching and learning.

A major sector of American society that has the potential to be drastically improved through the continued development and implementation of AI is education. The ability of AI to analyze vast amounts of data and generate insights offers unprecedented opportunities for enhancing education, enabling educators to become more effective in their roles and significantly enhance student outcomes. The interaction between AI and education is two-fold. First, AI-based technologies are powerful tools that can be used to improve several aspects of K–12 and postsecondary education for students, teachers, administrators, and staff (Chen et al., 2020). Second, given the rapid integration of AI in career paths related to business, STEM, health care, law, and transportation, just to name a few, ensuring that students are equipped with the proper skills and knowledge related to AI is important for maintaining a thriving American workforce (OpenAI, 2025).

Investment in research and development in key areas for improving education is critical to harness this potential. Some of the key promises of AI that merit investment include the following:

- I. Automating Routine Activities.** One of the most significant promises of AI in education is the potential automation of routine tasks, freeing up valuable time for educators to focus on more critical aspects of teaching and learning. For instance, AI holds potential to handle laborious administrative duties for teachers and administrators such as attendance tracking and scheduling classes. Automated grading systems can alleviate teacher time and are even beginning to assess written assignments using natural language processing algorithms, providing instant feedback to students and reducing the workload on teachers. Intelligent systems also can curate and organize relevant instructional materials, which not only saves time but also can promote instruction consistency and quality. Moreover, by analyzing trends in enrollment, retention, and student performance, AI can help administrators make informed decisions about resource allocation and policy implementation. A data-driven approach enabled by AI may help education systems to optimize their operations and better serve their students.
- II. Supporting Educator Professional Development.** AI offers enormous potential to improve educator professional development. For example, rigorous research has demonstrated positive impacts to instruction when teachers can rehearse their skills using mixed-reality simulated classrooms (Garrett et al., 2024). A fully automated AI-powered classroom would make such simulations flexible, scalable, and able to support development of teachers nationwide. Also, intelligent systems can analyze teacher performance data, providing insights into areas for improvement and suggesting targeted professional development opportunities. For example, as part of the Classroom Automated Feedback Environment (CAFE) project at AIR, Generative AI (GenAI) is used to derive metrics like percentage of on-topic speech and instances of respectful language from classroom video (Adams, 2024). This allows teachers to make data-driven decisions about how to improve their practice.
- III. Enhancing Student Engagement.** Engaging students in the learning process is a perennial challenge for educators and is an important issue given the relationship between student engagement and achievement. AI can play a pivotal role in addressing this challenge by providing interactive and immersive learning experiences. For example, AI can facilitate the creation of gamified learning environments, where educational content is presented in a game-like format and

incorporates elements such as rewards, challenges, and progress tracking. By leveraging the principles of game design to motivate and engage students, AI-powered gamification can make learning enjoyable and effective.

2.2 The Increasing Need for AI Education.

As AI continues to revolutionize various sectors, the need for comprehensive instruction on AI-related topics has never been more pressing. Preparing students to become proficient AI users—and in some cases, developers—is essential for ensuring our country will be ready to lead in the modern workforce.

- I. **Instructing Students as AI Users.** To foster a generation of technologically savvy individuals, schools need to integrate AI education and AI literacy into their curricula. Introducing students to AI concepts, applications, and safety considerations will help them understand and navigate the complexities of the technology. By doing so, students will not only become competent AI users but also critical thinkers who can evaluate how to most effectively use AI.
- II. **Developing Student Computational and Coding Skills.** A strong foundation in computational thinking and coding is vital for students aspiring to become AI developers. AI education can be introduced early to young children by integrating engaging, unplugged activities into English language arts instruction. As they move through their primary and secondary education, students at all schools should be able to learn about programming languages, algorithms, and data analysis, providing them with the tools they need to create and innovate with AI.
- III. **Supporting Teachers in AI Instruction.** Teachers play a pivotal role in delivering AI education and must be adequately prepared to do so. There is a need for professional development programs focused on AI literacy and pedagogy so that educators can effectively teach AI-related topics. Ensuring teachers are familiar with and comfortable using AI technology creates the necessary conditions for students to learn about and engage with AI tools and concepts.

2.3 While there is great potential for AI in education, there is significant reticence and resistance.

AI-based technologies can be leveraged in education to improve student learning and enhance efficiencies associated with student instruction and institutional operations. As it relates to student learning, AI-based technologies can provide students with automated instruction, personalized feedback, and customized learning paths (Maghsudi et al., 2021). Such technologies have been effective at improving student learning outcomes across disciplines and education levels ranging from K–12 to graduate programs (Bhutoria, 2022;

Kılıç, 2024). Despite these applications, there is significant hesitancy, and even resistance, among key stakeholders (e.g., students, faculty, and administrators) regarding the use of AI in education.

- I. **Addressing the Potential for Harm.** At the K–12 level, only 6% of educators view AI as being more beneficial than harmful, while 25% of educators view AI as being more harmful than beneficial, and 32% of educators view AI as being equally beneficial and harmful. Among perceived harmful factors are concerns related to privacy and security, the potential of AI-based tools to increase the frequency of academic dishonesty (e.g., plagiarism), and the possibility of the teacher–student relationship being displaced by AI (Weiner et al., 2024). This latter point includes concerns that educator jobs may be threatened by AI, despite evidence suggesting that AI is a supplement to instruction rather than a replacement (Chan & Tsi, 2024). There is also a general lack of knowledge and preparedness among educators and administrators regarding the effective use of AI in education. Specifically, only 25% of education schools integrate training on how AI can be leveraged to support teaching. This correlates with the finding that only 10% of college instructors feel comfortable using AI for education (Weiner et al., 2024).
- II. **Keeping Pace with the Rest of the World.** These trends are concerning when comparing the use and perspectives of AI between American students and educators to those in other countries including Australia, Brazil, Saudi Arabia, South Africa, and the United Arab Emirates. Specifically, as compared to educators across the globe, a lower percentage of American educators believe that AI has the power to improve student learning, whereas a higher percentage of American educators believe that the use of AI is unethical. These perspectives parallel student use of AI, in which a significantly lower number of American students identify themselves as frequent AI users as compared to students in other countries. Similarly, American students are less likely to understand how AI can be leveraged to improve their own learning (Anthology, 2024). To maintain a competitive edge with other countries in terms of education and student success, there is an urgent need for educators and academic leaders to understand the value of AI-based education technologies and be properly trained on their uses.
- III. **Competing in the Educational Technology Industry.** In addition to the direct impact on student success, American investment in AI-based education technologies will generate significant positive economic benefits. At present, the U.S. education technology (EdTech) industry is worth \$42 billion; however, North America represents only 37% of the global EdTech market, indicating the potential for growth (Garg, 2024; U.S. Department of Commerce, n.d.). Further, the global

EdTech market is expected to grow to more than \$800 billion by 2033 (market.us, 2024). While American companies will likely be a major part of this growth, resistance among educators to technologies such as AI, along with the associated implementation costs, have been identified as significant challenges to growth and expansion (Garg, 2024).

2.4. Addressing obstacles to American leadership in AI for education requires intentional collaboration between fields.

There are several steps that must be taken to enhance the use of AI at American academic institutions and ensure a thriving American EdTech industry. Given that educators and academic leaders will play a central role in such efforts, it is crucial that they appreciate that AI serves as a beneficial tool and not as a threat.

- I. **Getting Teacher Buy-In.** Teacher buy-in is an established mediator for ensuring AI effectiveness in improving student learning (Lin, 2022). Funding the development of training programs that promote AI literacy, describe the history of AI in education, and dispel misconceptions about AI's use can help achieve this goal. Further, there should be support provided for outreach and facilitation efforts between organizations that offer such programs, such as AIR, and academic institutions. In addition, educators and academic leaders must be equipped with the skills and knowledge necessary to effectively implement AI in their classrooms. For preservice teachers, greater exposure related to the use of AI during their education will increase the number of new teachers ready to deploy such tools. This can be achieved through incentives to education schools that develop programs explicitly focused on the use of AI for education.
- II. **Generating and Disseminating Evidence-Based Insights.** Alongside educator training, research and development efforts focused on AI-based education technologies are needed to guarantee American leadership in the rapidly evolving EdTech industry. These efforts will require close collaboration between software developers, academic institutions, and education researchers at organizations such as AIR (see **Figure 1**).

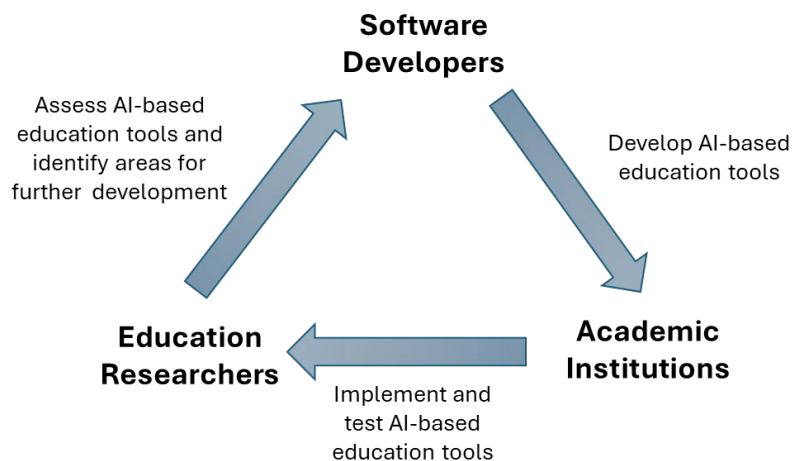


Figure 1. Collaborators Involved in Effective AI-Based Education Tool Development

Specifically, as new AI-based education technologies are developed, they should be deployed by educators in the classroom, allowing for their effectiveness to be measured. Such evaluations should assess how AI-based education tools impact anticipated variables (e.g., student

learning, instructional efficiency). These studies will ensure the creation of effective, trusted products, thus generating consumer interest and making the use of such products more widespread. These studies will also identify specific needs of students and educators that can be addressed through further AI development and refinement. These efforts can be supported through federally funded grants that allow educators and researchers to deploy and assess the educational value of AI-based technologies. Further, providing support for collaborations between academic institutions, research organizations such as AIR, and industry leaders in AI software development will accelerate the development of effective AI-based education tools. Together, these efforts will serve to boost student success, ensure a thriving workforce, and strengthen the American economy.

2.5. Encouraging a culture of continuous learning.

AI technology is evolving at a tremendous pace and is touching nearly every corner of industry. The American workforce will need to accept that their education in the use of this technology will need to be ongoing. By partnering with private institutions and industry leaders, the NSF OSTP can develop and share AI training materials and courses, making AI expertise accessible to a broader audience. This approach will foster a culture of continuous learning and development across the nation, promoting AI literacy and innovation. At AIR, our AI Steering Committee created learning communities that release AI courses and keep materials updated for quick learning cycles. These communities help build AI expertise and deploy AI experts across divisions, creating resources like case studies and ensuring that everyone has access to AI knowledge and can develop their skills in a supportive environment.

3. Small businesses need support to thrive in the age of AI.

AIR understands that AI, particularly Generative AI (GenAI), offers tremendous potential for businesses to increase their efficiency and productivity, leading to increased profits and expansion, which results in a stronger labor market and U.S. economy. For example, GenAI can be used to quickly summarize information, increase the availability of insights from data, and speed up day-to-day tasks such as record-keeping and writing emails. At the same time, difficulties in accessing GenAI tools and the knowledge needed to effectively use them may limit many small businesses' ability to make use of this technology. We propose that one priority of the current administration should be to offer support for small businesses in becoming GenAI-fluent and realizing AI's potential in promoting their business's success. The U.S. Small Business Administration (SBA) would be an appropriate conduit for this information.

3.1 The use of AI in small businesses needs study.

Addressing the needs of small businesses related to AI technology will require understanding the current degree of use or desired use of this technology among small businesses, the current level of knowledge within these businesses, and the primary use cases for this technology.

- I. **Surveying small businesses.** We suggest that the SBA seeks input from small business associations across as many states as possible to gather insights into what is most needed. Links to an AI use survey could be placed on the SBA website as a page banner to attract the attention of small business associations and entrepreneurs who visit the site for information.
- II. **Mapping industries and occupations to AI skills.** To generate use cases that are maximally relevant for specific geographic areas and industries, the information that SBA uses to produce state profiles can be combined with occupational skill profiles to identify the most prevalent AI-related skills needed in the state. In a partnership with City Colleges of Chicago (CCC), AIR was able to create a profile of the skills that were most likely to be in demand in the Chicago area in the immediate future based on the projected demand for occupations and provide guidance on how CCC could reach out to employers to discuss their immediate future workforce needs. Similar mapping could identify the most relevant AI skills for small businesses by industry and in different geographic areas.

3.2 Small businesses need resources to use AI effectively.

The SBA website offers information about the benefits and risks of AI use, along with a glossary and links to a few resources for writing GenAI prompts and understanding how the

use of GenAI in the development of new products and approaches can impact a business or entrepreneur's ability to patent their invention. This page can be enhanced with additional resources informed by the needs of small businesses around the United States.

- I. **Helping small businesses respond to AI risks.** The SBA website lists in its *Risks of AI use* section, “Try not to feed any sensitive data or proprietary information.” This is indeed best practice, as many free sources of GenAI algorithms, such as ChatGPT or Google Gemini, may retain users’ input and repurpose these data to train their algorithms. However, many of the use cases listed for GenAI would require proprietary data to be effective (e.g., “Make better business decisions,” “Create business content”). Guidance on seeking a GenAI provider that protects client data is crucial to help entrepreneurs bridge the gap between “do not use proprietary data with free Generative AI sources” and the suggestion to use GenAI to analyze or process proprietary data. AIR has worked internally to develop a checklist for evaluating the security of AI-empowered software options to make recommendations for our clients and decisions about company use of this software. A similar decision-making tool could help small businesses choose the right AI-empowered solution for their needs.
- II. **Understanding AI-related assets.** The SBA can highlight the types of information that should be guarded in the new age of GenAI. For example, prompts that have been carefully shaped by a company should not be shared. Access to novel data sources and innovative ways of combining this data with state or government data will give businesses a competitive edge, so any information about the data sources a business is using, even if they are publicly available, should be carefully guarded.

3.3 Small business consortia can pool AI resources.

Another way that the federal government could support small businesses’ use of GenAI is to provide guidance to small business consortia on investing in appropriate infrastructure to support secure access to GenAI solutions for their members.

- I. **Pooling resources to protect data.** Closed GenAI solutions allow users to work with GenAI without exposing their proprietary data. However, even basic closed GenAI systems will be prohibitively expensive for most small businesses. Given the tremendous potential for GenAI to increase productivity and efficiency, it may be worthwhile for a group of businesses to pool resources and share access to a closed GenAI software solution.
- II. **Collaborating on AI learning.** These consortia could also make the discussion of AI use and sharing of AI resources a regular part of their communications with consortia members and a point of discussion at meetings. AIR has maximized AI use

and knowledge across our organization by collaborating and sharing knowledge through presentations on new tools and use cases, digital training modules, and learning activities like hackathons.

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